

The U.P. Bottling of Foreign Liquor Rules, 1969

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State of Uttar Pradesh - Act

The U.P. Bottling of Foreign Liquor Rules, 1969

UTTAR PRADESH

India

The U.P. Bottling of Foreign Liquor Rules, 1969

Rule THE-U-P-BOTTLING-OF-FOREIGN-LIQUOR-RULES-1969 of 1969

Published on 3 October 1969

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The U.P. Bottling of Foreign Liquor Rules, 1969

Published vide Notification U.P. Gazette, Extra, dated 3rd October, 1969 vide Notification No. G-125 9-213-C, dated 29th September 1969

In exercise of the powers conferred under Section 41 of the U.P. Excise Act, 1910 (U.P. Act No. IV of 1910), read with Section 21 of the U.P. General Clauses Act, 1904 (U.P. Act No. I of 1904), and in supersession of all provisions relating to bottling of foreign liquor, the Excise Commissioner, with the previous sanction of the State Government makes the following rules relating to licences for the bottling of foreign liquor.

1.
 - (i) These Rules may be called the Uttar Pradesh Bottling of Foreign Liquor Rules. 1969.
 - (ii)

They shall come into force with effect from the date of their publication in the Gazette.

[2. (1) A bottling licence in form F.L. 3 may be granted to-

(i)

a distiller to bottle spirits,

(ii)

a brewer to bottle beer, and

(iii)

a vintner to bottle wines

by the Collector with the previous sanction of the Excise Commissioner.]

[Substituted by Notification No. 1684/IX-213-C, dated 31st October. 1988, published in U.P. Gazette, Part I-Ka, dated 1st April, 1989.]

(2)

Subject to a minimum of Rs. 500 (Rupees five hundred) a year or part thereof, the licence fee in case of a distiller or a vintner shall be lived at the following rates:

(a)

Spirit or Wine-

(i)

Bottles of 750 millilitres

Ten paise per bottle.

(ii)

Pint size of 375 millilitres

Five paise per pint.

(iii)

Nip of 180 millilitres

Two paise per nip.

(iv)

Bottles of capacity of less than 180 millilitres as sample for disposal as such.

Two paise per bottle.

(3)

[Subject to a minimum of Rs. 200 (rupees two hundred) a year or part thereof, the licence fees in the case of a brewer shall be levied at the following rates:]

[Substituted by Notification No. 315/Licence, dated 22nd April, 1983, published in U.P. Gazette, Part I-ka, dated 6th August, 1983.]

(a)

Draft beer : Five rupees per drum on filling of 50 litres.

(b)

Bottled beer -

(i)

Bottles of 650 millilitres

ten paise per bottle.

(ii)

Bottles size of 325 millilitres

five paise per pint.

(iii)

bottles of capacities of less than 325 millilitres as sample for disposal as such.

five paise per bottle.

(4)

[The bottling fee due on various foreign liquors including wine meant for export outside the country will in the first instance, be realised. Thereafter on production of proof that the quantity of the aforesaid foreign liquor has actually been

exported outside the country, an amount of the fee charged earlier may be refunded to the licensee.]

[Substituted by Notification No. 1684/IX-C-213-C, dated 31st Oct., 1988, published in U.P. Gazette, Part I-ka, dated 1st April, 1989.]

3.

(i)

A person, applying for a bottling licence under rule (2), shall alongwith the application furnish the following particulars to the Collector, namely-

(a)

the place at which and the premises in which bottling shall be carried on, and

(b)

the approximate number of days in a week or month during which bottling shall be carried on.

He shall also submit a detailed plan of the premises showing the different rooms or compartments and all the permanent fixtures therein. The plan shall be submitted in duplicate where bottling is to be carried on in non-bonded premises and in triplicate where bottling is to be carried on in bond.

(ii)

The Collector, if he is satisfied on enquiry that the applicant is a fit person to hold the required licence and the premises in which such person proposes to carry on bottling are suitable, may with the previous approval of the Excise Commissioner, grant the licence to such person provided that where bottling is to be carried on in a distillery or a brewery or a vintnery the plan of the premises shall alongwith the proposal, be sent to the Excise Commissioner for his approval. Every such licensee shall deposit Government promissory notes of the value of rupees five hundred as security for the payment of all sums which may become due to Government by way of fee on bottling leviable under Rule 2.

The promissory notes shall on deposit be endorsed to the Collector of the district without addition of names. The licensee shall be allowed to draw, as it falls due, the interest accruing on them.

4.

Unless the fee or any part thereof is in arrears or there be any other sufficient reason a bottling licence in Form F.L. 3 may be renewed by the Collector from year to year. Application for the renewal of the bottling licence shall be made in Form F.L.B. 1 to the Collector of the district on or before February 28, each year.

5.

(i)

In the case of a new licence in Form F.L. 3 the Collector may realise in advance, for the year or part thereof, an amount sufficient to cover the licence fee on the basis of number of bottles likely to be bottled during the year, but not less than rupees five hundred and necessary adjustment by way of either increase or decrease may be made at the end of the year as may be directed by the Excise Commissioner on the basis of the number of bottles actually bottled during the year. For renewal of a licence, licence fees equal to the licence fee payable for the previous year shall be realized in advance and necessary adjustment either by way of increase or decrease may be made at the end of the year as may be directed by the Excise Commissioner on the basis of actual number of bottles bottled during the year.

(ii)

If fees to be realized under sub-rule (i) do not exceed Rs. 500 (rupees five hundred), then the entire amount of Rs. 500 (rupees five hundred), shall be realized in lump sum at the time of grant or renewal of licence. If the amount to be realized exceeds Rs. 500 (rupees five hundred) then the same may be realized in four equal instalments: provided that in no case the first instalment shall be of less than Rs. 500 (rupees five hundred). The first instalment shall be realized at the time of grant or renewal of the licence, as the case may be, the second instalment shall be realized at the end of June, the third at the end of September and the last at the end of December.

(iii)

The adjustment referred to in sub-rule (i) shall be made by the Excise Commissioner annually in April on the basis of the number of bottles actually bottled during the year. For this purpose the Excise Inspector of the distillery, brewery, vintnery or the circle, as the case may be, shall submit a return in Form F.L. B-2 showing the total number of bottles bottled during the preceding year and also the licence fees payable by the licensee according to the prescribed scale relating to licences in Form F.L. 3 under his jurisdiction by April 7 to the Assistant Excise Commissioner of the charge, who after consolidation of the return districtwise shall submit the same to the Excise Commissioner by April 15.

6.

Every licence granted in Form F.L. 3 shall be subject to the following conditions-

(1)

the licensee shall carry the operations of bottling in the premises previously approved by the Collector in the case of bottling outside the distillery, brewery or vintnery and by the Excise Commissioner in the case of bottling within the distillery, brewery or vintnery and duly endorsed on the licence and the premises shall not be used for any other purpose except for bottling and storage of foreign liquor;

(2)

the licensee shall make no alterations in the said premises without the previous approval in writing of the Collector or the Excise Commissioner, as the case may be, and all such alterations shall be shown in the plan filed by him;

(3)

bottling shall be conducted in separate room (s) set apart for the purpose. The licensee shall erect bottling vats in bottling room (s) for storage of liquor. He may set up in the bottling room (s) such apparatus for filtration, bottling and processes connected therewith as may be necessary.

Bottled liquor shall be stored in separate room (s).

Every room shall bear on the outside a board on which shall be painted legibly the purpose for which the room is used.

(4)

bottling of foreign liquor for purposes of export out of India or to another State or Union territory within India shall take place on days other than those on which bottling is done for the purposes of sale within Uttar Pradesh. If bottling is done for both purposes on the same day, it must be done in separate room (s). Bottled liquor for sale outside Uttar Pradesh shall be stored in room (s) separate from the room (s) meant for storage of bottled liquor for sale in Uttar Pradesh;

(5)

bottling of Indian made rum for issue to defence personnel at concessional rate of duty shall not be done in the room (s) where bottling of foreign liquor for other purposes is done. Such bottled concessional rum shall be stored in separate room (s);

(6)

bottling of Indian made foreign rum for issue to defence personnel at concessional rate of duty shall be allowed only in a distillery in bond;

(7)

bottling shall not be done on Sundays and other public holidays. When the licensee wishes to carry on bottling, he shall give to the Collector 48 hours previous notice clearly mentioning the days and hours during which bottling is proposed to be done provided that bottling may be done on a Sunday or a public holiday and 48 hours notice will not be necessary when bottling is done in a distillery or brewery or vintnery;

(8)

blending or reducing is prohibited except under and in accordance with the special permission of the Excise Commissioner;

Note. - The terms blending and reducing shall carry the meanings given in Para 45 of the Excise Manual Volume I (1962 edition).

(9)

addition of any flavouring or colouring material or any other substance in foreign liquor is prohibited except under and in accordance with the special sanction of the Excise Commissioner;

(10)

if bottled spirit is meant for sale within Uttar Pradesh the licensee shall not bottle any foreign liquor of a strength less than 42 per cent, of alcohol volume/volume in the case of brandy, whisky or rum or of a strength less than 36 per cent, alcohol volume/volume in the case of gin. The spirit bottled for sale outside Uttar Pradesh may be issued at such strength as may be required by the regulations of the State, Union territory or country concerned;

(11)

the licensee shall not use any bottle of capacity of less than 180 ml. for bottling of spirit and wine and 325 ml. for bottling of beer except in the case of foreign liquor bottled to serve as sample;

(12)

bottles and flasks of capacities of 750 ml., 600 ml., 500 ml., 375 ml., 300 ml., 250 ml. and 180 ml. only shall be used for

bottling of foreign spirit and wine;

(13)

bottles and flasks of capacities of 650 ml., and 325 ml. only shall be used for the bottling of beer.

(14)

the words "Uttar Pradesh Excise" and the figures and letters "750 ml." "650 ml." "600 ml." "500 ml." "375 ml." "325 ml." "250 ml." or "180 ml." as the case may be shall be moulded on the bottles or the monogram consisting of letters "U.P.E." and the figures and letters "750 ml." "650 ml." "600 ml." "500 ml." "375 ml." "325 ml." "300 ml." "250 ml." or "180 ml." as the case may be in a rectangle e.g.-

UPE

750.

ml.

shall be sandblasted on the bottle.

(15)

the bottle shall bear the name or mark of the manufacturer.

(16)

the licensee shall not use for bottling foreign liquor any bottles or flasks bearing the name and trade mark of any other bottler or any other distiller or brewer or vintner. The Excise Commissioner, may, however, accord permission to the licensee for a period not exceeding six months to use such bottles and flasks with the consent of that bottler, distiller, brewer or vintner;

(17)

bottles used for bottling of concessional rum shall also have sand blasted or embossed on them the words "for troops only" along with the letters "C.S.D." when the rum is meant for export outside Uttar Pradesh and the letter "A.P.O." when meant for issue to the Army Purchase Organisation;

(18)

except with the special permission of the Excise Commissioner, the U.P. Excise bottles, shall not be used for bottling any Indian made foreign liquor which is intended for export to another State or Union territory or other country. Such liquor shall be bottled either in plain bottles or in bottles having such marks and indications (not being those approved for Uttar Pradesh) as may be required by the regulations of that State, Union territory or country. The liquor bottled for export may be issued in bottles of such sizes as may be required by the regulations of the State, Union territory or country concerned;

(19)

bottles to be used for the purpose of bottling foreign liquor shall be properly cleaned and washed first with a solution of potassium permanganate and then with pure water. They shall finally be rinsed with the same liquor which is to be bottled;

(20)

immediately after the bottles have been filled up. they shall be corked, capsuled, and labelled and removed to the room for storage of bottled liquor. A distinctive serial number to be known as the batch number shall be assigned to each bottling operation and the number shall be noted on the label;

(21)

(i)

In case of foreign liquor manufactured in India labels affixed to the bottles shall have the following conspicuously printed on them:

(a)

The description of liquor contained in the bottles e.g., whisky, brandy, rum, gin etc.

(b)

The guaranteed fluid contents of the bottle..

(c)

Strength of liquor contained in the bottle, in the case of whisky, brandy, rum or gin.

(d)

The words "Made in India".

(e)

Name and address of the licensee.

(ii)

In the case of imported liquor, the labels affixed to the bottles shall have the following conspicuously printed on them:

(a)

The description of liquor contained in the bottle, e.g., whisky, brandy, rum, gin, etc,

(b)

The guaranteed fluid contents of the bottle.

(c)

Strength of the liquor contained in the bottle in the case of whisky, brandy, rum, gin, etc.

(d)

The words "Made in" with the name of the country of origin.

(e)

The words "Bottled in India".

(f)

Name and address of the licensee.

(iii)

Labels on the bottles of foreign liquor for use to defence personnel shall also have the following legends printed on them-

on the top of the labels, a legend in red ink as follows:

"For sale to defence personnel only"

Diagonally across the label, a legend in red ink as follows:

"Possession by persons other than defence personnel is strictly prohibited".

(iv)

The labels to be used on liquor bottled for export to another State or Union territory or country shall be of such design and bear such words as may be required by the regulations of the State, Union territory or country concerned. The labels shall clearly state the name of the State, Union territory or country to which liquor is to be exported. If the labels used resemble those approved for use in Uttar Pradesh, they shall be over printed with the words "For sale in the (name of the State or Union territory or country) only". The type to be used for such overprinting shall not be smaller than two-line pica.

(v)

Labels on the bottles shall be so affixed as to be easily distinguishable. No label shall be pasted over the words, letters and figures moulded or sandblasted thereon.

(vi)

Before bringing any label into use, the licensee shall submit exact copies thereof in quadruplicate to the Collector, who shall forward them to the Excise Commissioner, for his approval. The Excise Commissioner, if he approves the label, shall number it and affix his official seal. One copy will be retained in the Excise Commissioner's office for record, the remaining three copies will be returned to the Collector who will send one copy each to the Inspector of the distillery, or brewery, or vintnery or circle concerned, as the case may be, for information and record and retain the third copy for his record. The licensee shall comply with such instructions as the Excise Commissioner may issue regarding any label.

(22)

(i)

Unless otherwise allowed by the Excise Commissioner all bottles shall be securely sealed with pilferproof capsules or crown corks with all capsules in such a way as to make it impossible to remove the seal without its being cut and/or broken. The capsules to be used on various kinds of liquor shall be standard sizes and shall bear on the top the words "U.P. Excise" together with the name of the licensee.

(ii)

The capsules to be used on liquor bottled for export to another State, Union territory or country shall be of such design and bear such words as may be required by the regulations of the State, Union territory or country concerned.

(iii)

The licensee shall invariably use the capsules which correspond to the pattern and specifications approved by the "Indian Standard Institute". He shall comply with such instructions as the Excise Commissioner may, from time to time,

issue regarding any capsule.

(23)

The licensee shall maintain accounts in the following registers:

(i)

Registrar in Form F.L.B.-3 in which the licensee shall enter the quantity, description and strength of liquor received and issued for bottling.

(ii)

Register in Form F.L.B.-4 in which the licensee shall enter the bottling operations carried on by him.

(iii)

Register in Form F.L.B.-5 in which the licensee shall enter the daily account of foreign liquor bottled and stored in the licensed premises.

(iv)

Ledger in Form F.L.B.-6 in which the licensee shall enter the abstract of all the transactions in the licensed premises.

(v)

Register in Form F.L.B.-7 in which the licensee shall enter the stock of bulk (unbottled) and bottled liquor at the end of a month.

(vi)

Gauge register of vats in Form F.L.B.-8.

(vii)

Dip Book in Form F.L.B.-9.

At the end of each month, the licensee shall submit a monthly abstract of the transactions in Form F.L.B.-6-A to the Excise Inspector concerned and to the Collector.

The licensee shall produce all the registers maintained by him for inspection on demand by the Excise Inspector concerned or other inspecting officers.

7.

Following additional special conditions will be applicable to bottling of Indian Made Foreign Liquor in bond under F.L.-3 licence:

(1)

The licensee shall execute a bond in Form P.D.B. with such security as may be fixed by the Excise Commissioner. The security shall be furnished either in cash or in interest bearing securities. Government promissory notes, national savings certificates, Post Office Savings Banks Pass Book or Post Office Cash Certificates or in fixed deposit receipts of the State Bank of India or any other Bank duly approved by the State. Government. The security is liable to be increased or decreased by the Excise Commissioner at any time, should he consider, for any reason, that the amount so fixed is inadequate or excessive.

(2)

Operations connected with the filling of bottles shall be conducted under supervision of an Excise Inspector.

(3)

The Excise Commissioner shall decide the strength of Excise personnel necessary for the proper supervision of the operations connected with bottling and his decision shall be binding on the licensee.

The licensee shall pay to the State Government at the end of each calendar month the costs of Excise staff necessary for the supervision of bottling, as may be determined from time to time by the Excise Commissioner.

The licensee shall provide quarters to the Excise staff to the satisfaction of the Excise Commissioner in the vicinity of the bonded warehouse for bottling of Indian made foreign liquor at a rent not exceeding ten per cent, per month of the salary of each member of the staff.

The licensee shall be bound to keep the quarters and their appurtenances in proper repair and not to interrupt or annoy any officer residing therein, in his use or enjoyment thereof. In case any question should arise as to whether the rent demanded by the owner of such quarters is just and reasonable taking into consideration the nature and sufficiency of the accommodation, the question shall be referred to the Excise Commissioner whose decision shall be final and binding on the licensee.

(4)

Operations connected with bottling shall be conducted in separate rooms called bottling rooms set apart for the purpose

within the premises near the foreign liquor store. In these rooms, the licensee may set up such apparatus for filtering, bottling and processes connected therewith as may be necessary. In the bottling rooms, bottling vats shall be erected for the storage of Foreign Liquor. Bottled liquor shall be stored in separate rooms.

All the rooms shall be well ventilated. The windows and ventilators shall be securely barred with iron bars embedded in cement and they shall be wirenetted, the net having a mesh of not more than 25 mm. Every room shall bear on the outside a board on which shall be painted legibly the purpose for which the room is used. All the rooms shall remain under the separate locks and keys of the licensee and the Excise Inspector.

(5)

Bottling shall be done during the prescribed working hours.

(6)

No bottles shall be filled with liquor except in the joint presence of the Excise Inspector and a representative of the licensee.

(7)

Liquor required for bottling in a distillery, vintnery or brewery shall be measured out and brought into bottling rooms by a permanently fixed pipe fitted within the liquor store with a cock and fastening for an excise lock or such other means as may be approved by the Excise Commissioner.

(8)

Bottling of rum meant for issues to troops at concessional rate shall be permitted in separate room (s) other than the room (s) where bottling of any other liquor is carried on. Bottled concessional rum shall not be stored with any other liquor.

(9)

The Excise Inspector incharge of bottling bonded warehouse shall maintain the following registers: .

(1)

Register in Form F.L.B.-3.

(2)

Register in Form F.L.B.-4.

(3)

Register in Form F.L.B.-5.

(4)

Ledger in Form F.L.B.-6.

(5)

Register in Form F.L.B.-7.

(6)

Dip Book in Form F.L.B.-9.

(10)

On the last working day of every calendar month, after all the transactions for that day are made, the Excise Inspector incharge shall take the stock of unbottled and bottled liquor stored in the bottling bonded warehouse, enter into the prescribed registers and ascertain the wastage of liquor in the bottling operations and storage in the bonded warehouse.

(11)

(a)

An allowance up to one per cent, may be made on the total quantity of spirit stored during a month for actual loss in bottling and storage. The licensee shall be responsible for the payment of duty on wastage in excess of one percent.

(b)

When the wastage does not exceed the prescribed limit, no action need be taken by the Excise Inspector incharge but if an excess is found at the time of monthly stock taking the Excise Inspector shall submit a statement to the Collector by fifth day of the month in Form F.L.B.-10 showing the quantity of actual wastage and the duty to be paid by the licensee on the excess wastage. On receipt of the statement, the Collector shall recover the duty from the licensee at the full rate of duty leviable on Indian made foreign spirit.

(12)

The Excise Inspector incharge bonded warehouse for the bottling of Indian made foreign liquor will, unless otherwise directed, work under the supervision of, and correspond with the Assistant Excise Commissioner in whose territorial

charge the bonded warehouse lies. In all ordinary matters regarding the working of the bonded warehouse the licensee should in the first instance apply to the Excise Inspector Incharge who will, if necessary, secure higher orders.

(13)

The hours of attendance of the Inspectors posted to a bounded warehouse for the bottling of Indian made foreign liquor will be fixed by the Assistant Excise Commissioner. The Excise Inspector posted to the bonded warehouse will fix the hours of attendance of clerks and peons. Ordinarily each official will be on duty for a total period not exceeding eight hours a day. If more than one Inspector be posted to a bonded warehouse operations involving the presence of an Inspector may continue from 6 a.m. to 6 p.m. if the licensee so desires.

(14)

The holidays allowed to the Inspectors and clerks at the bonded warehouses for the bottling of Indian made foreign liquor are: Sundays, Republic Day (26th January), Good Friday, Mahatama Gandhi's birthday (official), Independence day, Christmas Day, Holi (the day following the burning of Holi), Janamashtmi, Dashera (principal day), Diwali (principal day), Idul Fitr (principal day), Idul-zuha, Moharram (10th day) and Shabe-i-Barat.

Other Gazetted holidays will only be allowed if the licensee himself closes down on special grounds with the sanction of the Excise Commissioner.

In case the excise staff stationed at a bonded warehouse is required to attend the bonded warehouse on the above mentioned holidays, the licensee shall be required to pay to Government an overtime fee according to the following scales:

Rs. 4.00 per hour for Excise Inspector.

Rs. 1.00 per hour for Excise Clerk.

25.

paise per hour for Excise Peon.

The overtime fee so realized shall be credited to Government under the head "X Excise Collection of Payments for services rendered".

(15)

Bonded warehouse for the bottling of Indian made foreign liquor shall be open only for the entrance and exit of persons who have business within them. No one except officers of the Excise Department and the superior officers of other Government departments, licensee, his servants and licensed Vendors who have come to purchase liquor shall be allowed to enter the premises on any pretext. A register shall be kept of the names of all persons employed by licensee.

(16)

All persons entering a bonded warehouse for the bottling of Indian made foreign liquor shall be under the orders of the Excise Inspector incharge in respect of their conduct and proceedings within the warehouse and shall be liable to search on their quitting the premises at the discretion of the Excise Inspector incharge.

(17)

If it comes to the knowledge of a licensee that any person employed by him has committed any breach of the excise laws or of the engagements entered into by him, it shall be his duty to report the matter to the Collector, and to comply with the directions of the latter officer respecting the continued employment of such person.

(18)

The Excise Inspector incharge of a bonded warehouse for bottling of Indian made foreign liquor may eject and exclude from the premises any person as to whom he has reason to believe that he has committed or is about to commit any breach of these rules or of the provisions of the Excise Act, or who is intoxicated or disorderly. All actions under this rule shall forthwith be recorded by him in writing in his official diary for the information of his official superiors.

(19)

The licensee shall be bound by all the general rules for the management of bonded warehouse for bottling of Indian made foreign liquor and for the issue of foreign liquor there from which may already be in force or which may hereafter be prescribed under the existing excise laws or under any law which may hereafter be enacted by all special orders issued by the Excise Commissioner with regard to individual bonded warehouse, and shall cause all persons employed by them in the manufacture, issue etc. of liquor to obey all such rules.

(20)

No liquor shall be removed except under a pass in form F.L.B.-11 granted by the officer empowered in this behalf. The pass shall be issued neither on proof of full payment of duty or on proof of execution of bond. It shall be in triplicate, one

copy shall be made over to the licensee to cover the transport or export, the second forwarded to the chief revenue authority of the district of import or transport and the third retained for record.

(21)

Issues may be made by the licensee from the bonded warehouse for the bottling of Indian made foreign liquor as follows:

(1)

Foreign liquor may be issued in bond to persons and places as provided in the rules governing the export and transport of foreign liquor.

(2)

Foreign liquor may be issued on payment of duty to:

(i)

The premises in respect of which the licensee holds a wholesale licence for the vend of foreign liquor.

(ii)

Troops in India, as provided in the export and Transport Rules, on payment of duty at the prescribed rates.

F. L. 3

(Rule 2)

Licence for the bottling of *Indian made spirit/ wine/ beer in bond without payment of duty
..... over seasafter
payment of duty

Register no.....

Name of licensee.....

Locality

Licence for the bottling of *Indian made spirit/wine/beer in bond withoutover
seas..... after payment payment of duty in the premises specified below is granted to
.....of.....duty.....in the district of.....for the period
from.....to.....for which a security of Rs. 500 (rupees five hundred) has been paid in advance subject to
the provisions of the rules relating to the bottling of foreign liquor, the infraction of any of which or a conviction for any
offence under the Excise, Opium or Dangerous Drugs laws shall render the licensee liable to the forfeiture of his licence
and the security deposit in addition to any of the penalties imposed under the above laws.

Description of licensed premises.

Collector.

* Strike whichever is inapplicable.

Endorsement of renewal

This licence is hereby renewed on the conditions hereinbefore stated for the period stated below:

Period.....

Signature of Collector

F. L. B. 1

(See Rule 4)

Application for renewal of licence to bottle Indian made Spirit/Wine/Beer in bond/outside bond
over seas

(Delete the letters and words not applicable)

To

The Collector.....District

Sir,

I/We.....residing at.....district.....request that the accompanying licence in Form F.L. 3 for
bottling of foreign spirit/wine/beer may be renewed for the year ending 31st March, 19.

2.

I/We hereby declare the particulars (in the table overleaf) of the premises where bottling shall be carried on.

3. I/We agree to abide by the terms and conditions of the licence which may be renewed.

4. I/We have enclosed the site and elevation plans of the bottling premises.

5. I/We hereby declare that no excise licence previously held by me/us has been suspended or cancelled or has failed to

be renewed owing to a breach of the rules governing the grant of such licence.

I/We declare that to the best of my/our knowledge and belief the information furnished herewith is true and complete.

I/We hereby declare that I/we am/are not in arrears of any Excise dues.

Signature (s) of the applicant (s)

Place

Date

I hereby certify that i have verified from relevant records and have found that there are no arrears of excise dues against the applicant (s).

Place

District Excise Officer.

Date

Table

The name of the place and the site on which the bottling premises are situated

Brief description (with boundaries) of the premises

Description of each main division or sub-division of the bottling premises

1

2

3

F. L. B. 2

[See Rule 5 (iii)]

Statement showing bottling of foreign liquor during the previous year and the amount of licence fees assessed for previous year and advance to be realised for the current year

Licence fees realized in advance

Bottling done during the previous year-----

Total amount of licence fees (Cos.7 and 10)

Orders by Excise Commissioner, U. P.

Serial number

Name of bottler

Locality

Spirit and wines

Rate of bottling fee per bottle

Amount of fees

Beer

Rate of bottling fee per bottle

Amount of fees

Remarks

1

2

3

4

5

6

7

8

9

10

11

12

13

F.L.B. 3

[See Rule 6(23)]

(1)

Register of receipts and issues of foreign liquor for bottling in the licensed bottling premises
at-----District-----

Month and Date

Description of liquor

Opening Balance

Receipts

Quantity in Bulk lit.

Strength

Quantity in L.P. litres

Name of distillery from where received

No. of Pass

Date of Pass

Quantity in Bulk lit.

Strength

Quantity in L. P. lit.

1

2

3(a)

3(b)

3(c)

4(a)

4(b)

4(c)

4(d)

4(e)

4(f)

Total of cols. 3 and 4

Issued for Bottling

Balance at the close of the day

Remarks

Quantity in Bulk litres

Quantity in L.P. litres

Quantity in Bulk litres

Strength

Quantity in L.P. litres

Quantity in Bulk litres

Quantity in L.P. litres

5(a)

5(b)

6(a)

6(b)

6(c)

7(a)

7(b)

F.L.B. 4

[See Rule 6(23)]

(2)

Register of bottling operations carried on in the licensed bottling premises/distillery at-----District-----

Date

Description of liquor

Quantity issued for

bottling-----

Number of bottles-----

No. of Vat.from which issued

Bulk litres

Strength

L.P.Litres

750ml.

650ml.

600ml.

500ml.

375ml.

1

2

3(a)

3(b)

3(c)

3(d)

4(a)

4(b)

4(c)

4(d)

4(e)

Date

Description of liquor

Quantity issued for

bottling-----

Number of bottles-----

No. of Vat.from which issued

Bulk litres

Strength

L.P.Litres

750ml.

650ml.

600ml.

500ml.

375ml.

1

2

3(a)

3(b)

3(c)

3(d)

4(a)

4(b)
4(c)
4(d)
4(e)

Note-A separate register should be opened for each variety and strength.

F.L.B. 5

[See Rule 6(23)]

(3)

Register of daily account of foreign liquor bottled and stored in the licensed premises/distillery at ----- District

Month and date(1)

Balance in hand(2)

Total in Bulk litres

Strength

Total in L.P. Litres

Receipts (bottling gone)(3)

(2-a) number of bottles with capacities

(3-a) number of bottles with

750ml.

650ml.

600ml.

500ml.

375ml.

325ml.

300ml.

250ml.

180ml.

(2-b)

(2-a)

(2-d)

750ml.

650ml.

600ml.

500ml.

375ml.

325ml.

Capacities

Total in Bulk Litres

Strength

Total in L.P. Litres

Total in hand(4)

Total in Bulk Litres

Strength

Total in L.P. Litres

(4-a) number of bottles with capacities

300ml.

250ml.

180ml.

(3-a)

(3-c)

(3-d)

750ml.

650ml.

600ml.

500ml.

375ml.

325ml.

300ml.

250ml.

180ml.

(4-a)

(4-c)

(4-d)

Issues (5)

Total in Bulk Litres

-----Strength

Total in L.P. Litres

Balance at the close of the day (6)

(5-a) number of bottles with capacities

(6-a) number of bottles with capacities

750ml.

650ml.

600ml.

500ml.

375ml.

300ml.

250ml.

180ml.

(5-b)

(5-c)

(5-d)

750ml.

650ml.

600ml.

500ml.

375ml.

325ml.

300ml.

250ml.

180ml.

Quantity of liquor issued for bottling during
the day

Quantity of liquor bottled during the day

Wastage in Bottling

Total in Bulk Litres

Strength

Total in L.P. Litres

(7)

(8)

(9)

(6-b)

(6-c)

(6-d)

Bulk Litres

L.P. Litres

Bulk Litres

L.P. Litres

Bulk Litres

L.P. Litres

Note - A separate register should be opened for each variety and strength.

F.L.B. 6

[See Rule 6(23)]

Ledger showing transactions during a month in the licensed premises of bottling
at-----District-----Month-----

Stock of Foreign liquor remaining at the end of
the previous month in Bulk/L.P. Litres

Receipt of Foreign Liquor during the present
month

Total of Columns (1) and (2) in Bulk/L.P. Litres

Total issues of foreign liquor during the month

Total quantity of foreign liquor bottled during
the present month

(1)-----

(2)-----

(3)-----

(4)-----

(5)-----

Un-bottled(bulk)

Bottled

Total

Date

Name of distillery

Quantity Bulk/L.P. Litres

Un-bottled(bulk)

Bottled

Total

Date

Bulk/L.P. Liters

Date

Bulk/L.P. Litres

- (a)
- (b)
- (c)
- (a)
- (b)
- (c)
- (a)
- (b)
- (c)
- (d)
- (b)
- (a)
- (b)

Total issues of Bottled Foreign liquor during
Calculated balance at the end of the present
month in Bulk/L.P. Litres
Actual balance of Foreign spirit in hand at the
end of the month in Bulk/L.P. Litres
Wastage in L.P. Litres
Remarks

- (6)
- (7)
- (8)
- (9)
- (10)

Date
Bulk/L.P. Litres
Un-bottled
Bottled
Total
Un-bottled
Bottled
Total
In storage
In bottling
Total
In L.P. percentage

- (a)
- (b)
- (a)
- (b)
- (c)
- (a)
- (b)
- (c)
- (a)
- (b)

(c)

(d)

F.L.B. 7

[See Rule 6(23)]

(5)

Monthly stock taking book of Bulk (un-bottled) foreign liquor and bottled foreign liquor in the licensed premises of Bottling at-----District-----month-----19.

A - Stock of Bulk (Un-Bottled) Foreign Liquor

Description of Liquor

Number of Vat

Dip

Temperature

Indication

Strength

Bulk Litres L.P. Litres

Remarks

Total

B - Stock Of Bottled Foreign Liquor

Description of liquor

Number of bottles

Number of Bulk Litres

Strength

Number of L.P. Litres

750 ml.

650 ml.

600 ml.

500 ml.

375 ml.

315 ml.

300 ml.

250 ml.

180 ml.

Total

Grand

Total :

F.L.B. 8

[See Rule 6(23)]

Gauge Register of Vats

No-----

Table of dimensions

Wet centimeters

Litres _____ One

fifth of a

centimeter _____

0

2

4

6

8

F. L. B. 9

[See Rule 6(23)]

DIP Book

Date

Vat no.

Dip

Temperature

Indication

Strength

Remarks

1

2

3

4

5

6

7

P. D. B.

[See Rule 7(i)]

Bond (with security), to be entered into by the licensee of a bonded warehouse for the bottling of Indian Made Foreign Liquor.

(Delete the letters and words not applicable)

I/We, am of hereinafter called obligor (s) bound to the Governor of Uttar Pradesh in the sum are jointly and severally of rupees to be paid to the Governor of Uttar Pradesh for which payment I/We jointly and severally bound myself/ourselves and my/our legal representative.

Whereas the above bonded obligor (s) has/have obtained a licence for the bottling of Indian made foreign liquor at

Whereas the Excise Commissioner, U. P. (hereinafter called the Commissioner) has required the obligor (s) to deposit as security for the amount of this bond, the sum of rupees endorsed the securities as hereinafter mentioned of a total face value rupees.....in the Commissioner's favour,.....and whereas the obligor (s) has/have furnished such security by depositing with the Commissioner the cash-securities as aforementioned.

The condition of this bond is that if the obligor (s) and his/their legal representatives shall observe all the provisions of the U.P. Excise Act, IV, 1910 and rules made thereunder relating to payment of duty and shall either produce for payment of duty all liquor on which duty has not been paid which is brought into bonded warehouse for bottling, or shall deposit such liquor in a store, room or other place of storage approved by the Commissioner under the U. P. Bottling of Foreign Liquor Rules, 1969 or any modification thereof or shall otherwise account for to the satisfaction of the Commissioner, such liquor and shall not remove from the approved premises or from the store-room or other place of storage, before the proper duty has been paid, any liquor except as provided for in the rules.

And if the obligor (s) or his/their legal representatives shall pay into the treasury to the account of the Commissioner, all dues whether excise duty or other lawful charges, which shall be demandable from the obligor (s), as shown in the records of the Excise Inspector incharge, within ten days from the date of demand thereof being made in writing by the said officer.

This obligation shall be void.

Otherwise and on breach or failure in the performances of any part of this condition, the same shall be in full force.

And the Governor of Uttar Pradesh, shall, at his option, be competent to make good all the loss and damages from the amount of the security deposit or by enforcing his rights under the above written bond or by both. And without prejudice to any other remedy provided by law or by this bond the Governor of Uttar Pradesh may recover all the said dues from

the bonded obligor (s) as arrears of land revenue.

I/We declare that this bond is given under the orders of the State Government for the performance of an act in which the public are interested.

Place

Signature (s) of obligor (s)

Date

Witness

(1)(2)

Address

(1)(2)

Occupation

(1)(2)

Accepted by me this.....day of.....19.

For and on behalf of the Governor of Uttar Pradesh.

Note - Ad valorem Stamp duty is payable on this bond by the obligor (s).

F.L.B. 10

[See Rule 7(ib)]

Statement showing the storage and bottling wastage in the bottling bonded warehouse and the duty payable on the excess wastage of spirit.

Name of the month.....

Name of the licence..... Stock of Indian Made spirit remaining at

Stock of Indian Made spirit remaining at the end

of the previous month in L.P. Litres.

Total receipt of foreign spirit in L.P. litres

during the present month

Total of Columns (1) and (2) in L.P. Litres

Total quantity of foreign spirit issued during

the month in L.P. Litres for bottling

Total quantity of Indian Made foreign spirit

bottled during the present month in L. P. Litres

Total issues of bottled Indian Made foreign

spirit during the present month in L.P. Litres

Calculated balance of Indian Made foreign spirit

at the end of the month in L.P. Litres

(1)

(2)

(3)

(4)

(5)

(6)

(7)

Wastage

Actual balance of Indian foreign spirit at the end of the

month in L P. Litres

Made.....

Wastage allowed in U.P. Litres

Excess Wastage on which duty is to be paid

Rate of Duty per L.P.L.

Amount of duty to be paid

Remarks

Storage in L.P.Litres

Bottled in L.P. Litres

Total in L.P.L.

Percentage

(a)

(b)

(c)

(d)

(8)

(9)

(10)

(11)

(12)

(13)

(14)

F.L.B. 11

Pass covering issues from the bonded warehouse for the bottling of Indian Made Foreign Liquor at.....

No.

Dated

19

Current to.....

1. Name of consignor.

2. Name of consignee.

3. Place to which issued and route by which despatched.

4. Number and date of permit if any.

5. Duty Paid Rs.....

6. For details see below.

Excise Inspector Incharge, Bonded Warehouse for Bottling of Indian Made Foreign Liquor at

Description of foreign liquor

Batch no.

Bottles, Flasks (Quantity, contained in each)

Total Bulk litres

Alcoholic strength

1

2

3

4

5

Related AI tags, queries and research notes

Translation